

Affidavit



Indian-Non Judicial Stamp
Haryana Government



Date : 24/06/2026

Certificate No. G0X2026F3493



Stamp Duty Paid : ₹ 101

GRN No. 153894647



(Rs. Only)

Penalty : ₹ 0

(Rs. Zero Only)

Deponent

Name : Atsrealworthpvt Hastainfrastrur Homekraftinfrap

H.No/Floor : Nill

Sector/Ward : 99a

Landmark : Ats grandstand

City/Village : Gurugram

District : Gurugram

State : Haryana

Phone : 89*****44



Purpose : Affidavit to be submitted at Concerned office

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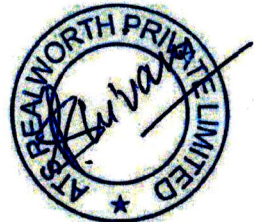
AFFIDAVIT-CUM-UNDERTAKING

We, Shivam Wadhwa, presently discharging my duties as Authorized Representative of M/s ATS Realworth Private Limited (Company/Judgment Debtor) having its registered office at 711/92, Deepali, Nehru Place, New Delhi-110019, Rajeev Gupta M/s Hasta Infrastructure Private Limited having registered office 296, Forest Lane, Sainik Farm, Neb Sarai, New Delhii-110068 and Shivam Wadhwa Authorized Representative of new Developer company M/s Homekraft Infra Private Limited having registered office at 711/92, Deepali, Nehru Place, New Delhi-110019 ("Judgement Debtor Company") do hereby solemnly affirm and declare and as under:



Hasta Infrastructure Pvt. Ltd.

Authorized Signatory



1. I/We say that the present affidavit is being submitted by the Company(s) in view of concern raised by an allottee, Vijyant Agarwal ("**Decree Holder**") in relation to compliance of order passed by the Hon'ble Haryana Real Estate Regulatory Authority, Gurugram "HRERA", RERA-GRG-5309-2024 IN RERA-GRG-4463-2021- Vijyant Agarwal (Decree Holder) versus ATS Realworth Pvt. Ltd, and approval of revised building plans, change of developer and other miscellaneous in respect of "ATS Grandstand Phase-1" in Group housing measuring 11.5878Acs in Sector 99A, Gurugram bearing License no: 37 of 2013 dated 03.06.2013).
2. That an execution application has been filed by the Decree Holder seeking enforcement of the Judgment dated 18.04.2024 (**Judgment**), passed by the Hon'ble RERA Authority in the above Complaint wherein the Hon'ble RERA Authority was pleased to pass following directions:

"12. Hence the authority hereby passes this order and issues the following directions under section 37 of the Act, to ensure compliance of obligation cast upon the promoter as per the functions entrusted to the authority under section 34(f) of the act of 2016:

I. The Respondent/Builder is directed to return the pre-EMI already paid by the Complainants to the financial institution on behalf of the respondent and further, pay Pre-EMI till the offer of possession directly to the financial institution as per the agreed terms of the letter dated 23.10.2018.

II. A period of 90 days is given to the respondent to comply with the directions given in this order and failing which legal consequences would follow.



Hasta Infrastructure Pvt. Ltd.


Authorized Signatory



III. The respondent is directed to handover the physical possession of the allotted unit of the complainant as per terms and conditions of the buyer's agreement after obtaining the occupation certificate from the concerned department.

IV. The planning branch is directed to check the status of the project and in case of any violation of provisions of the Act, 2016, necessary penal proceedings to be initiated against the respondent."

3. That Judgment Debtor Company hereby declare that monthly Pre-EMI have been regularly paid and undertakes to make payment of said monthly Pre-EMI in a time bound manner till the offer of possession, directly to the financial institution as per the agreed terms of the letter dated 23.10.2018 and in due compliance of the Judgment.
4. That the rights and entitlements of the Decree Holder arising under the Builder Buyer Agreement and the Order dated 18.04.2024 passed by Hon'ble RERA Authority shall remain fully protected and enforceable in their entirety. It is further assured that revision of building plans, change of the developer, or whatsoever shall neither dilute, extinguish, nor adversely affect the existing rights and claims of the Decree Holder, including but not limited to rights pertaining to the allotted unit, monetary claims, delay compensation, pre-EMI/EMI liabilities and reimbursements, possession, inspection, execution and enforcement of the HARERA Order.



Hasta Infrastructure Pvt. Ltd.

 **Authorized Signatory**



5. That Hasta Infrastructure Private Limited, being the landowning & license-holding company under License No. 37 of 2013 dated 03.06.2013, and HomeKraft Infra Private Limited, being the new developer, do hereby jointly and severally undertake, covenant and affirm that they shall faithfully honour, perform and be bound by all commitments, obligations, assurances and undertakings made by the Judgment Debtor in the foregoing paragraphs, without any any objection and demur thereto. Further, they shall remain liable to ensure due compliance thereof in letter as well as spirit, without prejudice to the rights and entitlements of the Decree Holder.
6. That the Decree Holder's Unit no : 3051 in Tower-3 in ATS Grandstand Phase-1 shall remain unchanged, whereas area and specifications are subject to minor revision within the parameters defined in Builder Buyer Agreement and in the provisions of RERA Act.
7. That duly signed account statement of Decree Holder's Unit no : 3051 in Tower-3 in ATS Grandstand Phase-1 shall be issued / sent through email by 26.06.2026.
8. That the contents thereof have been drafted under Judgement Debtor's instructions and that the same are true and correct to the best of my



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knowledge and belief based on the records maintained by the Judgment Debtor Company in its ordinary course of business.

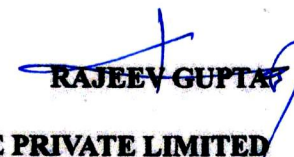
9. I/We say that nothing material has been concealed from this Hon'ble Authority.



SHIVAM WADHWA

ATS REALWORTH PRIVATE LIMITED

(Authorised thru Board Resolution dated : 01.05.2025)



RAJEEV GUPTA

HASTA INFRASTRUCTURE PRIVATE LIMITED

(Authorised thru Board Resolution dated: 05.06.2026)



SHIVAM WADHWA

HOMEKRAFT INFRA PRIVATE LIMITED

(Authorised thru Board Resolution dated : 27.06.2025)

DEPONENT(S)

Hasta Infrastructure Pvt. Ltd.

Authorized Signatory

VERIFICATION:

I/We, Shivam Wadhwa, Rajeev Gupta and Shivam Wadhwa the deponent(s) above-named, do hereby verify that the contents of the foregoing affidavit are true and correct to the best of my knowledge based on the records maintained by the Judgment Debtor and Companies Hasta Infrastructure Private Limited and Homekraft Infra Private Limited, no part of it is false or incorrect and nothing material has been concealed therefrom.

Verified at Gurugram on this 25th day of June 2026.


SHIVAM WADHWA


RAJEEV GUPTA


SHIVAM WADHWA

DEPONENT(S)

Hasta Infrastructure Pvt. Ltd.

Authorized Signatory